

tween a devise to a person for a particular purpose with no intention of conferring the beneficial interest, and a devise with the view of conferring the beneficial interest, but subject to a particular injunction. Thus, if lands be devised to A. and his heirs *upon trust to pay debts*, this is simply the creation of a trust, and the residue will result to the heir; but if the devise be to A. and his heirs *charged with debts*, the intention of the testator is to devise beneficially subject to the charge, and then whatever remains, after the charge has been satisfied, will belong to the devisee (e).

12. **No positive rule to be laid down.**—No positive rule can be laid down in what cases the devise will carry with it a beneficial character, and in what it will be construed a trust; but on all occasions the Court, refusing to be governed by mere technical phraseology, extracts the probable intention of the settlor from the general scope of the instrument (f).

13. **Relationship of the devisee or legatee.**—The recognition of the *relationship* of the parties has often materially influenced the Court against the construction of a mere trust (g); as, where a testator gave 5*l.* to his brother, [*147] who was his *heir-at-law, and “made and constituted *his dearly beloved wife* his sole heiress and executrix to sell and dispose thereof at her pleasure, and to pay his debts and legacies;” and Lord King decreed the devisee to be beneficially entitled (a). But any allusion of this kind is merely one circumstance of evidence, and therefore to be counteracted by the language of the other parts of the instrument (b).

Bird v. Harris, 9 L. R. Eq. 204; and see *Dawson v. Clarke*, 18 Ves. 254; *Williams v. Arkle*, 7 L. R. H. L. 606.

(e) *King v. Denison*, 1 V. & B. 272, *per* Lord Eldon.

(f) *Hill v. Bishop of London*, 1 Atk. 620, *per* Lord Hardwicke; *Walton v. Walton*, 14 Ves. 322, *per* Sir W. Grant; *Starkey v. Brooks*, 1 P. W. 391, *per* Lord Cowper; *King v. Denison*, 1 V. & B. 279, *per* Lord Eldon.

(g) *Lloyd v. Spillet*, cited *Cook v. Duckenfield*, 2 Atk. 566; *Lloyd v. Wentworth*, cited *Robinson v. Taylor*, 2 B. C. C. 504; *Smith v. King*, 16 East, 283; *Coningham v. Mellish*, Pr. Ch. 31; *Cook v. Hutchinson*, 1 Keen, 42.

(a) *Rogers v. Rogers*, 3 P. W. 193.

(b) *Buggins v. Yates*, 9 Mod. 122; *Wych v. Packington*, 2 Eq. Ca. Ab. 507; and see *King v. Denison*, 1 V. & B. 274.